also permits the State to shield children from unfit parents by enforcing child-abuse laws and removing children from parental custody in appropriate cases.

III

The Ninth Circuit's procedural objections to the injunction are unlikely to prevail.

First, the parents protected by the injunction very likely have standing because they are objects of the challenged exclusion policies. See *Diamond Alternative Energy, LLC* v. *EPA*, 606 U. S. 100, 114 (2025). Contrary to the Ninth Circuit's suggestion, the injunction does not provide relief for all the parents of California public school students, but only for those parents who object to the challenged policies or seek religious exemptions.

Second, class certification was likely proper. The District Court addressed the requirements for certification under Rule 23 and explained why it concluded that they were met.

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The application to vacate the Ninth Circuit's stay presented to JUSTICE KAGAN and by her referred to the Court is granted as to the parents but is otherwise denied.

JUSTICE THOMAS and JUSTICE ALITO would grant the application in full.

JUSTICE SOTOMAYOR would deny the application in full.

JUSTICE BARRETT, with whom THE CHIEF JUSTICE and JUSTICE KAVANAUGH join, concurring.

As the dissent observes, substantive due process is a controversial doctrine. Judges typically interpret express constitutional rights, such as the freedom of speech or religion. But substantive due process asks us to find unexpressed rights in a constitutional provision that guarantees only "process" before a person is deprived of life, liberty, or property. U. S. Const., Amdt. 14, § 1. When rights are un-

stated, how do judges know what they are? The obvious risk is that judges will use their own values as a guide, thereby jeopardizing the People's right to self-governance. To mitigate this risk, the Court has crafted a demanding test for recognizing unexpressed rights: They must be "deeply rooted in this Nation's history and tradition" and "implicit in the concept of ordered liberty." *Washington* v. *Glucksberg*, 521 U. S. 702, 721 (1997) (internal quotation marks omitted). Relevant here, the doctrine of substantive due process has long embraced a parent's right to raise her child, which includes the right to participate in significant decisions about her child's mental health. See *Pierce* v. *Society of Sisters*, 268 U. S. 510 (1925); *Meyer* v. *Nebraska*, 262 U. S. 390 (1923); *Parham* v. *J. R.*, 442 U. S. 584 (1979).

The parent-applicants are likely to succeed on the merits under a straightforward application of these cases. California prohibits its public schools from informing parents of their child's gender transition at school unless the child consents. The record in this case indicates that the State's nondisclosure policy applies even if parents expressly ask for information about their child's gender identification. One set of parents learned of their child's transition at school only after the child attempted suicide. Strikingly, even after this tragic event, school administrators continued to withhold information about the student's gender identification. California's nondisclosure policy thus quite obviously excludes parents from highly important decisions about their child's mental health, see *Parham*, 442 U. S., at 601–604, and is unlikely to satisfy heightened scrutiny. Our resolution of the parents' likelihood of success on this claim is dictated by existing law.

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The dissent questions how the Court can adhere to parental-rights precedent after its decision in *Dobbs* v. *Jackson Women's Health Organization*, 597 U. S. 215 (2022). *Post*, at 505 (opinion of KAGAN, J.). But *Dobbs* calls into question neither the doctrine of substantive due process nor the other

unexpressed rights that the doctrine protects. Applying *Glucksberg*, *Dobbs* holds that *Roe* v. *Wade*, 410 U. S. 113 (1973), and *Planned Parenthood of Southeastern Pa.* v. *Casey*, 505 U. S. 833 (1992), were incorrectly decided because a right to abortion is not "'deeply rooted in this Nation's history and tradition' and 'implicit in the concept of ordered liberty.'" *Dobbs*, 597 U. S., at 231. And because the Court concluded that the *stare decisis* factors counseled against retaining these cases, *Dobbs* overruled them. *Id.*, at 263–290. It does not follow from *Dobbs* that all our substantive due process cases conflict with *Glucksberg*, much less that *stare decisis* would counsel overruling any that do.

No party to this dispute questions the continued validity of *Meyer*, *Pierce*, or *Parham*. For all its concerns about deciding the issue in this posture, the dissent expresses "no doubt that parents have rights, even though unenumerated, concerning their children and the life choices they make." *Post*, at 507. And the precedent recognizing those rights controls our assessment of whether the parents are likely to succeed on the merits.

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The word "likely" is important, because it reflects that our assessment is preliminary. We consider the merits not to conclusively resolve them, but because they bear on the limited question before us: Are the parents entitled to the benefit of the judgment entered by the District Court while California tries to overturn that judgment on appeal? The Ninth Circuit—itself acting on an interim basis—said "no." We disagree. The parents must continue to litigate in the Ninth Circuit, and if necessary, this Court. But in the meantime, the injunction of California's policy—which, incidentally, *was* entered after a full merits process—remains in place.

And contrary to the dissent's charge, granting interim relief is not a sign of the Court's "impatience" to reach the merits. *Post*, at 503. Instead, the grant reflects the Court's judgment about the risk of irreparable harm to the parents.

See *Nken* v. *Holder*, 556 U. S. 418, 435 (2009). If the parents were probably right but would suffer little harm from the Ninth Circuit's stay, they would not be entitled to interim relief. *Ibid.* But that is not the situation here. Under California's policy, parents will be excluded—perhaps for years—from participating in consequential decisions about their child's mental health and well-being. Thus, the parents are likely to suffer irreparable harm if California enforces its policy while this litigation winds its way through the courts. *Ante*, at 497.

One last point: The Court has chosen to accompany today's order with a *per curiam* opinion that explains its reasoning. The choice to say more rather than less is perhaps the source of the dissent's concern that our disposition of this application will be taken as a "conclusive merits judgment." *Post*, at 504. But see, *e. g.*, *Whole Woman's Health* v. *Jackson*, 594 U. S. ——, —— (2021) (KAGAN, J., dissenting from denial of application for injunctive relief) (critiquing this Court's interim orders for "barely bother[ing] to explain [their] conclusion[s]"); *Trump* v. *Boyle*, 606 U. S. ——, —— (2025) (KAGAN, J., dissenting from grant of application for stay) (similar). Interim applications routinely require the Court to balance the lock-in risk of saying too much against the transparency cost of saying too little. See *Labrador* v. *Poe*, 601 U. S. 1110, 1128–1129 (2024) (KAVANAUGH, J., concurring in grant of stay). In my judgment, the benefits of explanation win out here. The Ninth Circuit (following the Sixth Circuit) significantly misunderstood *Mahmoud* v. *Taylor*, 606 U. S. 522 (2025), and general course correction will allow the case to progress efficiently. And because of the *Dobbs* point that JUSTICE KAGAN raises, it would have been unwise to issue an unreasoned order on the parents' substantive due process claim.

When an interim application comes to us, "we must decide it—grant or deny." *Labrador*, 601 U. S., at 1121 (KAVANAUGH, J., concurring in grant of stay). Because the *Nken*

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factors strongly favor the parents, *ante*, at 496–497, I see no basis for denying this application.

JUSTICE KAGAN, with whom JUSTICE JACKSON joins, dissenting.

Today's decision shows, not for the first time, how our emergency docket can malfunction. A case raising novel legal questions and arousing strong views comes to this Court via an application about whether to stay a district court's injunction pending appeal. The ordinary appellate process has barely started; only a district court has ruled on the case's merits. The Court receives scant and, frankly, inadequate briefing about the legal issues in dispute. It does not hold oral argument or deliberate in conference, as regular procedures dictate. It considers the request on a short fuse—a matter of weeks. And then the Court grants relief by means of a terse, tonally dismissive ruling designed to conclusively resolve the dispute. The Court does all this even though the application of existing law to the case raises tricky questions, and so cries out for reflection and explanation. The Court is impatient: It already knows what it thinks, and insists on getting everything over quickly. See also, *e. g.*, *Department of State* v. *AIDS Vaccine Advocacy Coalition*, 606 U. S. ——, —— (2025) (KAGAN, J., dissenting from grant of stay application); *Trump* v. *Wilcox*, 605 U. S. ——, —— (2025) (KAGAN, J., dissenting from grant of stay application).

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Indeed, the precipitousness of the Court's decision today has yet a further—and wholly new—dimension: In granting emergency relief, the Court cannot even wait for an appellate court to conclude its own process for deciding the identical issue. As the Court notes, a Ninth Circuit panel last month stayed the District Court's injunction against the challenged policies, pending the State's appeal of that order. See *ante*, at 495–496. The plaintiffs responded by simultaneously filing two motions—one asking this Court to vacate the panel's